

		arbitration award. Code Civ. Proc. § 1285. The petition and notice of hearing must be served at least 10 days before the hearing. Code Civ. Proc. § 1290.2. Where the arbitration agreement does not provide the manner in which service shall be made and the person on whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with section 1290.4(a) of the Code of Civil Procedure, the petition and notice of hearing must be served in a manner provided by law for the service of summons in an action. Code Civ. Proc. § 1290.4(b). Service on an individual is made by personal delivery to that person, or someone authorized to accept service of process on his behalf. Code Civ. Proc. § 415.10. Or, if personal service cannot be achieved after reasonable diligence, substitute service may be made by leaving a copy at his home or work with a competent person and mailing a copy to that address. Code Civ. Proc. § 415.20(a). Here, there is still nothing filed showing proper service of the Petition on Mr. Yoon. Thus, the Court continues the hearing to February 8, 2024 at 2PM to permit proper service of the Petition and related papers, including notice of the new hearing date, on Mr. Yoon.
9	2022-01298277 Hunter vs. Long	Richard Hunter Motion to Compel Arbitration Petitioner Richard Hunter's ("Petitioner") petition to confirm the arbitration award in his favor against respondents Jackson Long and North Shore Poke Co., Store 7, LLC (collectively, "Respondents") is continued to January 4, 2024 at 2:00 PM for Petitioner to serve Respondents with the petition and notice of hearing. The petition and notice of hearing must be served at least 10 days before the hearing. Code Civ. Proc. § 1290.2. Where the arbitration agreement does not provide the manner in which service shall be made and the person on whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with section 1290.4(a) of the Code of Civil Procedure, for service in California the petition and notice of hearing must be served in a manner provided by law for the service of summons in an action. Code Civ. Proc. § 1290.4(b). The Operating Agreement provides: 11.3 <u>Notices</u>. Except as otherwise provided herein, any notice to be given under this Agreement shall be made in writing and sent by express, registered or certified mail, return receipt requested, postage prepaid, facsimile (in which case a confirmed copy shall be sent on the same date by certified first class mail or express delivery), or commercial delivery service, or personally delivered, addressed as set forth below: If to the Company: North Shore Poke Co Store 7, LLC 11488 South Street Cerritos, CA 90703 Attn.: Managing Member If to any Member, the address of the Member appearing on Exhibit A hereto. [Petition, Ex. 4.B at p. 26 (emphasis added).] Otherwise, a summons may be served on a corporation by personal delivery to the agent for service of process, the president, CEO or "other head of the corporation," vice president, secretary, assistant secretary, treasurer, assistant treasurer, controller or CFO of the corporation. Code Civ. Proc. § 416.10(a), (b). Or substitute service may be made by leaving the summons and complaint with a personal apparently in charge and mailing a copy to the same address. Code Civ. Proc. 415.20(a).

		Service on an individual is made by personal delivery to that person, or someone authorized to accept service of process on his behalf. Code Civ. Proc. § 415.10. Service on an individual can also be made by mailing the summons and complaint with notice of and acknowledgment to be returned by the individual. Code Civ. Proc. §415.30. Proof of service must be filed five court days before the hearing. CRC 3.1300(c). Petitioner filed a proof of service showing the petition was sent by regular U.S. mail to North Shore Poke Co Store 7, LLC ATTN: Managing Member Jackson Long. ROA No. 25. However, the mailing address on the proof of service (1148 South Street) is different than the address in the Operating Agreement (11488 South Street). In addition, the documents served included a Minute Order dated 10/29/2023. There is no Minute Order dated 10/29/2023 in this proceeding, nor would it be likely given the service date of 10/27/2023. "In making service by mail there must be a strict compliance with sections 1012, 1013 and 1013a." <i>Forslund v. Forslund</i> (1964) 225 Cal.App.2d 476, 485. Petitioner's proof of service does not comply with either the Operating Agreement or the Code of Civil Procedure. Petitioner shall serve a copy of the Petition and notice of continuance in accordance with Code of Civil Procedure section 1290.4, as detailed above. Clerk to give notice.
10	2023-01312590 Lopez, Bark & Schulz LLP vs. Ozy Media, Inc.	Lopez, Bark & Schulz LLP Motion to Confirm Arbitration Award Petitioner Lopez, Bark & Schulz, LLP moves to confirm the arbitration award entered against Respondents Ozy Media, Inc. and Carlos Watson. A petition to confirm an arbitration award must be served and filed at least 10 days, and no later than 4 years, after service of the award on the petitioner. (Code Civ. Proc. §§ 1288, 1288.4.) If a petition to confirm is duly filed, and unless the arbitration award is corrected or vacated, "the court shall confirm the award as made." (Code Civ. Proc. § 1286.) The petition shall (1) set forth the substance of the arbitration agreement or attach a copy thereof, (2) set forth the name of the arbitrator(s), and (3) set forth or attach a copy of the award and the written opinion of the arbitrator(s), if any. (Code Civ. Proc. § 1285.4.) "If an award is confirmed, judgment shall be entered in conformity therewith." (Code Civ. Proc. § 1287.4.) The Petition is timely. The award is dated 1/8/23, and the petition was filed and served more than 10 days but less than 4 years later, on 2/21/23. Petitioner has complied with Code Civ. Proc. § 1285.4, by including a copy of the arbitration agreement, stating the name of the arbitrator (Charles Parrett of AAA), and including a copy of the arbitration award. Respondent Ozy Media, Inc. does not oppose the motion. Respondent Carlos Watson filed an opposition, arguing that the court lacks jurisdiction over him as he was never properly served with the Petition. Petitioner concedes in its Reply brief that it did not initially properly serve Respondent due to a misunderstanding. (Lopez Decl. ¶ 2.)